

Papua New Guinea Student Association Constitution

South Dakota State University

Date of revision: 01/28/2025

ARTICLE I - NAME

Section 1. The name of this organization shall be the Papua New Guinea Student Association at South Dakota State University (SDSU).

Section 2. It may also be known as PNGSA.

ARTICLE II – PURPOSE & RESPONSIBILITIES

Section 1. The purpose of this organization is:

- A. Promote unity and support among students of Papua New Guinea at SDSU.
- B. Celebrate and share Papua New Guinean culture and heritage with the broader university and local community.
- C. Provide academic, social, and emotional support for members.
- D. Foster relationships with other cultural and student organizations at SDSU.
- E. Serve as ambassadors of Papua New Guinea, contributing to cultural exchange and mutual understanding.
- F. Promote values reflective of Papua New Guinea's cultural and spiritual heritage, including its Christian roots.

Section 2. Statement of Compliance with Campus Regulations

- A. This organization and its members shall uphold the Student Code of Conduct and educational mission of SDSU as well as local, state and federal laws.

Section 3. Statement of Non-discrimination

- A. This organization accepts members without regard to race, color, creed, religion, national origin, ancestry, citizenship, sex, gender identity, transgender, sexual orientation, age, disability, genetic information, military service membership, or veteran's status.
- B. This organization accepts members without regard to academic major or program.
- C. This policy includes, but is not limited to, recruiting, membership, activities and events, and opportunities to hold office.

Section 4. Statement of Non-hazing

- A. Members of this organization will not conspire to engage in hazing or commit any act that causes or is likely to cause bodily danger, physical harm, or personal degradation or disgrace of any fellow student or person.

Section 5. Consequences of Violation

- A. Any report of a violation made by this organization against the Student Code and/or hazing policy will result in an investigation by the appropriate campus officials.
- B. Substantiated violations may result in probation or suspension of this organization.

- Section 6. To remain active and officially recognized by the University, this organization must:
- A. consistently comprise at least seven (7) members who are enrolled SDSU students and an advisor who is an employee of the university.
 - B. complete the annual re-registration process during the timeframe designated by the Office of Student Activities.

ARTICLE III - MEMBERSHIP

- Section 1. Eligibility Membership in PNGSA is open to:
- A. All students of Papua New Guinea origin enrolled at SDSU.
 - B. Other individuals interested in Papua New Guinean culture and supporting this organization.

Section 2. SDSU students must comprise at least fifty percent plus one of the total memberships.

Section 3. Categories of Membership

- A. Active Members: Papua New Guinean students at SDSU who participate in PNGSA activities and meetings.
- B. Associate Members: Non-Papua New Guinean students or community members who support the association.
- C. Membership Rights: Active members are entitled to vote, hold office, pay dues, and participate fully in all association activities. Associate members may participate in activities but may not vote, hold office, or pay dues.

Section 4. Member Expulsion

- A. Any member may bring a case against a fellow member for expulsion based on the grounds of:
 - 1. behaving in a way that contradicts the purpose of the Papua New Guinea Students Association;
 - 2. violating SDSU's Student Code and/or the policies of this constitution.
- B. The accusation must be brought to the attention of the president a minimum of 48 hours prior to the next scheduled club meeting.
 - 1. The president must notify the accused a minimum of 24 hours prior to the next scheduled club meeting that charges will be brought before the members present at the next scheduled club meeting.
 - 2. See article IV, Section 3 regarding officer recall/expulsion.
- C. The accused member will be given 10 minutes to address the membership in defense of charges before the vote takes place.
- D. The vote for expulsion will take place at the same meeting, as long as quorum is met.
 - 1. A two-thirds vote is required to expel a member.

ARTICLE IV – OFFICERS & RESPONSIBILITIES

Section 1. This organization's Executive Committee will include the following officers:

- A. President
 - 1. Acts as the Chief Executive Officer
 - 2. Schedule and lead executive board and general club meetings.
 - 3. Maintain contact with the advisor.
 - 4. Complete annual re-registration process.
 - 5. Represents the Association
 - 6. Ensure the implementation of this constitution.
- B. Vice President
 - 1. Assume the duties of the president as needed.
 - 2. Coordinate annual officer elections and transition process.
 - 3. Coordinates club recruitment efforts.
- C. Treasurer
 - 1. Collect dues.
 - 2. Coordinate fundraising efforts.
 - 3. Work with on-campus accountant to maintain all financial records of the club.
 - 4. Prepares budgets.
 - 5. Manages finances.
 - 6. Presents financial reports during general meetings.
- D. Secretary
 - 1. Create and distribute agendas for each meeting.
 - 2. Take and send out meeting minutes to members and advisor.
 - 3. Maintain records.
 - 4. Handles correspondence.
- E. Events Coordinator
 - 1. Organizes and coordinates events for the association.
 - 2. Manage club social media account.
 - 3. Coordinate event and general club marketing efforts.
- F. Shadow Treasurer
 - 1. Assists Treasurer in role
- G. Shadow Secretary
 - 1. Assists Secretary in role
- H. Shadow Events Coordinator
 - 1. Assists Events Coordinator in role

Section 2. Election of Officers, Terms & Qualifications

- A. Officers of this organization shall be elected by a simple majority vote.
 - 1. Candidates for officer positions (Executive Committee) may be nominated (not self-nominated) and voted upon at an appointed election meeting time.
- B. Officer Eligibility
 - 1. Officers must be members of this organization who are in good standing with the University.
 - 2. Officer candidates must have a cumulative GPA of 2.5 or more at the time of nomination of candidates.
 - 3. Officer candidates must be a sophomore or a higher year than a sophomore year on the following semester, unless a special circumstance where no sophomore or a higher year nomination is eligible, or declines nomination, a freshman (for the next semester) may be eligible for nomination.

- C. Service Terms
 - 1. Current officers and newly elected officers will share responsibilities at conclusion of an election, and newly elected officers will take over responsibilities at the last spring general meeting.
 - 2. The length of term for officers is one year (final spring meeting to final spring meeting).
- D. Officer Vacancies
 - 1. In the event of an officer vacancy, the executive committee have authority to appoint an interim replacement until an election is held.

Section 3. Officer Resignation, Recall and/or Dismissal from Duty

- A. If an officer decides to resign from duty before their term has expired, the officer must make their intentions known to the President two weeks in advance.
 - 1. The President will call an executive quorum (refer to Article VIII, Section 2) to appoint an interim replacement until the next election.
- B. Any member may bring a case against an officer for expulsion on the grounds of:
 - 1. behaving in a way that contradicts the purpose of the Papua New Guinea Student Association;
 - 2. violating SDSU's Student Code and/or the policies of this constitution;
 - 3. neglecting the responsibilities of the position.
- C. The accusation must be brought to the attention of the president a minimum of 48 hours prior to the next scheduled club meeting.
 - 1. The president must notify the accused a minimum of 24 hours prior to the next scheduled club meeting that charges will be brought before the members present at the next scheduled club meeting.
- D. The accused officer will be given 10 minutes to address the membership in defense of charges before the vote takes place.
- E. The vote for expulsion will take place at the same meeting, as long as a general quorum is met.
 - 1. A two-thirds vote is required to expel a member.
 - 2. If an officer is successfully dismissed, they may appeal (with evidence) to the executive committee for review. An executive quorum may be formed to vote and reinstate the dismissed.
- F. In the event the accusation is against the President, the Vice-President will take lead and follow the procedure above (Article IV, Section 4), but only after the executive committee have met and discussed if the President's actions were truly detrimental to the organization.
- G. If the executive committee have found that an officer has been wrongly dismissed, the officer may be reinstated if they wish. If an interim or new officer has been appointed or elected, they will be dropped.

ARTICLE V – ADVISOR

Section 1. This organization will have an advisor who is a full-time employee of SDSU.

Section 2. Selection of Advisor, Terms & Qualifications

- A. Advisors for this organization shall be elected by a simple majority vote.
- B. Advisors will have an annual term limit once appointed, with the option to renew if they wish once their term expires.
- C. The r; however, s/he/they may step down as advisor at any time with one month's notice to the president.
- D. Upon notification of an upcoming advisor vacancy, the executive committee will develop a plan to recruit and install a successor.

Section 3. Advisor Roles & Responsibilities

- A. Maintain regular contact with the president.
- B. Have knowledge of the purpose of this organization.
- C. Provide resources and support for events and reservations.
- D. Assist with the organization's financial matters.
- E. Act as a mentor, motivator and policy interpreter, as needed.

Section 4. Advisor Expulsion

- A. In the event that this organization considers the removal of its advisor(s), it is considered best practice to consult the Office of Student Activities regarding possible options.
- B. Any member may bring a case against the advisor for expulsion on the grounds of:
 - 1. behaving in a way that contradicts the purpose of association;
 - 2. violating provisions set forth in the BOR or SDSU policies and procedures manual and/or the policies of this constitution;
 - 3. neglecting the responsibilities of the position.
- C. The accusation must be brought to the attention of the president a minimum of 48 hours prior to the next scheduled club meeting.
 - i. The president must notify the accused a minimum of 24 hours prior to the next scheduled club meeting that charges will be brought before the members present at the next scheduled club meeting.
 - ii. See article IV, Section 3 regarding officer recall/expulsion.
- D. The accused advisor will be given 10 minutes to address the membership in defense of charges before the vote takes place.
- E. The vote for expulsion will take place at the same meeting, as long as quorum is met.
 - i. A two-thirds vote is required to expel a member.

ARTICLE VI – FINANCES

Section 1. The ultimate responsibility for financial obligations of this organization rests with its membership.

Section 2. This organization will use an on-campus account to deposit and expend its funds.

Section 3. If this organization becomes and remains inactive for a period of 18 consecutive months, all on-campus funds belonging to this organization will be transferred to an Office of Student Activities account index.

Section 4. Expenditure Authority

- A. The president and treasurer (not shadow treasurer) must approve all purchases that are \$50 or more.

Section 5. Statement of Dues

- A. Dues will be set by the Executive Committee with guidance from the advisor prior to the first meeting of the fall semester.
- B. Each active member must pay dues to the treasurer by the third meeting of the fall semester.
- C. Active members who do not pay dues may not vote or participate in Club activities until they have paid in full.

ARTICLE VII – STATEMENT OF LOCAL, NATIONAL AND/OR INTERNATIONAL AFFILIATION

- Section 1. In the event of a conflict between the Papua New Guinea Student Association’s constitution and SDSU Policies & Procedures, SDSU’s Policies and Procedures shall supersede.

ARTICLE VIII – CONDUCTING OFFICIAL CLUB BUSINESS

- Section 1. This organization will use Robert’s Rules of Order to conduct official organization business.

Section 2. Quorum

There shall be two types of quorums:

- A. General Quorum: shall be fifty percent plus one of this association’s total membership. Associations total membership refers to total active member that have paid their dues. This quorum comes into effect only during general meetings.
- B. Executive Quorum: shall be at least five officers present during an executive committee meeting. This quorum is to come into effect if the executive committee needs to make a decision during an emergency (in the best interest of the association) in the event where a decision is required as soon as possible. Situations may include, member expulsion, interim replacement, or anything the President deems as an emergency.

Section 3. Method to Amend the Constitution

- A. Any active member may propose an amendment to the president.
- B. The President then presents it the executive committee, and the committee evaluates whether it is in the best interest of the association.
- C. If the proposed amendment is endorsed by the committee, it shall be brought before a club meeting for a vote for amendment.
- D. Once the amendment is introduced to the membership at a scheduled association meeting, it may be discussed (and debated) and a vote may take place.
- E. A two-thirds vote is required to pass an amendment once quorum is met.
- F. This constitution and any amendments or changes to it must be filed with the Office of Student Activities and available to any member of the organization.
- G. The constitution on file with the Office of Student Activities will be considered the official constitution of this organization.

Section 4. Meetings

Types of Meetings:

- A. General Meetings: General meetings shall be held at least once a month during the academic year.
 - 1. General meetings are open to all members.
 - 2. At least two weeks' notice shall be given prior to meetings.
 - 3. All meetings are to be organized and controlled by the Executive Committee.
 - 4. A meeting may be called by the President on short notice if there is an important announcement/notice or an emergency to brief its members.
- C. Executive Committee Meetings: The Executive Committee shall meet at least twice a month to plan and discuss the organization's activities.

ARTICLE IX – VOTING

Section 1. Each voting member will have one (1) vote.

- A. Proxy and absentee votes will not be permitted without a special provision granted by the president.
- B. If members are to be absent during a vote or election, the president must be notified 24 hours beforehand.